

ESTATE OF ROGER BLACKTHORN

Case Number: CVPB22-0031404

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed; however, a Status Report has been filed. The matter has not been properly noticed, as there is not timely served notice of hearing. The Status Report indicates that additional time is needed before the estate administration can be finalized. The matter is continued to **Monday, September 15, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order.

This matter is also on calendar for hearing on an Order to Show Cause Re: Monetary Sanctions. Counsel filed a written response May 20, 2025. In light of the response, the Order to Show Cause is **VACATED**. **No appearance is necessary on today's calendar.**

ESTATE OF HAROLD BLANKENHEIM

Case Number: 25PB-0032863

This matter is on calendar for hearing on a Petition to Determine Succession to Real Property. The Petition contains the following defects:

1. The Petition fails to identify the subject property as the primary residence of the Decedent. The death certificate does not identify this real property as the decedent's residence on the date of death. Probate Code § 13151 was amended effective January 1, 2025. As of that date, this procedure can only be used to transfer an interest in the decedent's primary residence. Judicial Council form DE-310 was updated April 28, 2025, to reflect these changes.
2. Item 3 of the attached will states, "If my wife survives me for one hundred twenty (120) days, I give all of my property and estate to her." While the Petition states that decedent was not survived by a spouse, the death certificate attached to the Petition indicates that decedent was survived by a spouse. A supplemental declaration must be filed providing the Court with the spouse's date of death to determine whether the property should pass to Petitioners or to the personal representative of the estate of Shirley Blankenheim.
3. Attachment 11 fails to identify the decedent's interest in the property.
4. The Inventory and Appraisal does not contain original signatures regarding the Statement About the Bond or Probate Referee and fails to comply with California Rule of Court 2.303 and Local rule 15.19 to qualify as a "fax filing."
5. The Inventory and Appraisal incorrectly states under item 4 that no probate referee is required; however, there is property included subject to appraisal by referee. Page 2 indicates a probate referee was used, thus the defect can be overlooked.
6. A proposed order has not been lodged with the court, as required by Local Rule 15.06.

Due to the defects Court cannot determine if proper notice has been given. This matter is continued to **Monday, July 14, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. An Amended Petition must be filed correcting the defects on the updated Petition form. Notice of Hearing must be timely served on all individuals entitled to notice. **No appearance is necessary on today's calendar.**